



2026:AHC:76120-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 11370 of 2026

Parvati Devi

.....Petitioner(s)

Versus

Purvanchal Vidhut Vitrana Nigam And Another

.....Respondent(s)

Counsel for Petitioner(s)	: Arun Mishra, Vijay Pratap Singh, Vishnu Pratap Pandey
Counsel for Respondent(s)	: Narendra Kumar Tiwari

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.**

1. The writ petition was moved on 25th March, 2026. Mr. Arun Mishra, learned advocate appearing for petitioner had submitted, prayer of his client was for issuance of mandamus to command respondent no.2 (the Executive Engineer) to generate one bill from inception of the connection, on the basis of final reading of 4468KWH units without adding fixed charge after line temporarily disconnected under clause 4.37(a) in Uttar Pradesh Electricity Supply Code, 2005 and without surcharge. Drawing attention to clause 4.37(a) he had submitted, the provision mandates the licensee to bill a consumer on minimum charges after a connection is temporarily disconnected. The licensee is to thereafter move for permanent disconnection.

2. Paragraphs-2 and 3 from order dated 25th March, 2026 are reproduced below.

"2. Mr. Rakesh Kumar Mishra, learned advocate holding the brief appears on behalf of respondents (the supply company). He draws attention to order dated 12th December, 2025 made by co-ordinate Bench in petitioner's own case (Writ C no.- 43924 of 2025). Pursuant to said order, petitioner made representation and the bill dated 20th February, 2026 was generated. He points out from the bill, there is deduction. Petitioner's grievance was taken care of.

3. Mr. Arun Mishra in reply demonstrates from the bill, there is amount of

Rs. 2,24,241.30/- as late payment surcharge. Referring to clause 6.5(b)(i) he submits, clear provision is for no payment on late payment surcharge when a bill is revised upon consumer's complaint found to be correct."

3. The writ petition was then called and heard on 1st April, 2026. On that day there was query made by Court. Record of the query and answer given by Mr. Mishra, as appearing from order dated 1st April, 2026, are reproduced below.

"On query, Mr. Arun Mishra points out, there was disconnection on disconnection memo issued on 21st March, 2025 indicating demand of Rs.4,23,419/-. His client complained. Revised bill dated 20th February, 2026 was issued on reduced demand of Rs.3,68,494/-. This sum includes late payment surcharge of Rs.2,24,241.30/-. He reiterates his prayer for interference."

It further appears from said order dated 1st April, 2026 that the controversy had boiled down to demand of surcharge at Rs. 2,24,241.30/-. There was direction for petitioner to deposit the difference between the disputed billed amount less the surcharge and corresponding direction upon the supply company to disclose particulars in support of the demand for surcharge, as levied on earlier arrears. In this context paragraph-4 from said order dated 1st April, 2026 is reproduced below.

"4. Petitioner to deposit Rs.1,44,253/- (bill amount less the surcharge) on or prior to adjourned date. Omission will lead to dismissal of the writ petition. The supply company will produce the particulars in support of said disconnection memo dated 21st March, 2025. It be disclosed on affidavit, to be accepted on adjourned date upon advance copy served."

4. Today, Mr. N.K. Tiwari, learned advocate appearing for respondents (the supply company) files affidavit dated 7th April, 2026 with copy served to Mr. Mishra. He submits, it is in compliance with direction for disclosing the particulars. Mr. Mishra submits, his client cannot be required to make the deposit. He wants to demonstrate from the affidavit filed, 'Ok' bill dated 21st May, 2019 has not been produced/disclosed. He refers to sub-clause (a) under clause 4.37. The sub-clause is reproduced below.

"4.37 (a) The Licensee shall, after a connection is temporarily disconnected, bill a consumer on minimum charges, and also issue a notice, as per format given in Annexure 4.9, to the consumer, to remove the cause of disconnection failing which, the supply shall be disconnected permanently after six months. Such connections shall be treated as dormant connections (awaiting final account), and the billing shall be stopped after carrying out inspections and duly informing the consumer, and final account of the consumer shall be prepared."

(emphasis supplied)

Clause 4.38 is also reproduced below.

"4.38 Permanent Disconnection.

(i) The supply shall be disconnected permanently in following cases:

(a) With the termination of the agreement.

(b) If the cause for which the supply was temporarily disconnected is not removed within six months period.

(c) On request of consumer as described under section 4.14(g)"

(emphasis supplied)

He submits, there is mandate for permanent disconnection. That is his client's prayer.

5. Prayers made in the petition are reproduced below.

"i) Issue a writ of mandamus commanding respondent no. 2 to generate one bill from inception of connection on the basis of final reading of 4468 KWH unit, No fixed charge after line temporarily disconnected U/clause 4.38 of U.P. Electricity Supply Code, 2005 and without surcharge.

ii) Issue writ of certiorari quashing bill dated 20.02.2026 issued by respondent no. 2."

Petitioner has sought quashing of bill dated 20th February, 2026. Court,

upon hearing submissions made on behalf of petitioner had tried to determine controversy between the parties, to find dispute on the surcharge. On behalf of petitioner Mr. Mishra submits, his client is not required to deposit the difference because there must be permanent disconnection.

6. Petitioner was expected to pay the difference, which she has refused to deposit on direction made obviously as a pre-condition to look into her grievance in respect of allegedly wrongful imposition of the surcharge. Her contention in disputing the difference will draw the writ Court into a dispute in respect of the billed amount. We refuse to be so drawn. Furthermore, the supply company is empowered by clauses 4.37 and 4.38 to permanently disconnect a line temporarily disconnected, the cause for which has not been removed. Whether or not petitioner can compel the supply company to do something that it is empowered to do is not a question for consideration in the writ petition, where the bill itself is disputed.

7. For reasons aforesaid we will not interfere. The writ petition is dismissed.

(Arindam Sinha,J.)

(Satya Veer Singh,J.)

April 8, 2026

Shiraz